

26PR00667 Matter of John A. Burton & Beverly A. Burton Revocable Living Trust

County: sonoma

Division: Probate

Hearing date: 2026-09-04

Motion: Petition for an Order to Confirm Validity of the John A. Burton and Beverly A. Burton Revocable Living Trust, as last Amended November 16, 2016; Confirm Trustee; and Confirm Assets of the Trust

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Tentative Ruling: This matter is CONTINUED to December 18, 2026, at 9:30 a.m. in Department 63 for the reasons stated below.

The assets at issue here are financial accounts held by North Bay Credit Union and Exchange Bank. However, North Bay Credit Union and Exchange Bank, the entities in possession of the accounts, have not been served as required by Probate Code [Prob C] §851(a)(2). The petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.) The only proofs of service are by mail which is legally insufficient. This issue was noted in the Probate Examiner Notes posted July 22, 2026, including the requirement to serve the notice and petition in the manner of a summons. Matter is continued to allow petitioner another opportunity to accomplish code compliant service. Any proof of service should be filed at least 15 days prior to the hearing. Upon reaching the merits, and in the absence of an objection, the Court is then inclined to approve the petition.